

	2021-01207960	approval of an \$130,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to each plaintiff; \$32,500.00 for attorneys' fees; \$4,805.76 for attorneys' costs; \$2,650.00 for settlement administration fees; and \$90,044.24 total PAGA penalties (\$67,533.18 to LWDA). Plaintiff is ordered to submit <u>by August 20, 2026</u> a revised proposed order and judgment <u>with all exhibits attached</u> (fully executed copy of October 2025 amendment to settlement agreement; fully executed copy of second amendment to settlement agreement; and notice letter). The portion of paragraph (n) of the proposed order and judgment referring to a dismissal should be removed. In addition, the notice letter should be revised as follows: 1. The first sentence of the first paragraph of section A should end after "(the "Action")". The word "which" following "(the "Action")" should be removed and be replaced with "PAGA." I.e., the first two sentences of the first paragraph of section A should state: "You have received this Notice because you are an Aggrieved Employee in this Private Attorney General Act ("PAGA") Action, Mark Rychlik v. Day & Nite Doors, Inc., et al., Orange County Superior Court Case No. 30-2021-01207960-CU-OE-CXC (the "Action"). PAGA authorizes "Aggrieved Employees" to file lawsuits to recover civil penalties on behalf of themselves, other employees, and the State of California for Labor Code violations committed by their employer." 2. The last sentence of the first paragraph of section A should be removed, as the method of calculating the aggrieved employees' individual payments is stated elsewhere in the notice letter. 3. The first sentence of the second paragraph of section A should include plaintiff's name and the names of the defendants. 4. In the last sentence of the third paragraph of section A, the phrase "Plaintiff's litigation costs" should be replaced with "PAGA Counsel's litigation costs." 5. The stray parentheses at the end of the fourth paragraph on page 2 of the notice letter should be removed. 6. Other than the first sentence, all of the fifth paragraph of page 2 of the notice letter should be removed, as should the phrase ("The release provisions of the Settlement Agreement are as follows:") that follows it.
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		7. The first sentence of the second paragraph of section B should be removed. 8. The following phrase should be removed from the second sentence of the second paragraph of section B: "portion of the proposed." 9. The word "Defendant" in the third sentence of the second paragraph of section B should be replaced with "Defendants." The final accounting hearing is scheduled for <u>November 18, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the status of defendants' settlement payments, the actual amounts paid to the aggrieved employees, and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
9	Deatherage v. Stifel, Nicolaus & Company, Incorporated 2023-01344151	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$300,000 PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief. 2. Were the motion papers served on all parties and the LWDA? Attorney Whitehead states in his declaration that "[t]he LWDA has been provided with notice of this motion and the Settlement," but the court's file does not contain any documents showing that the LWDA or defendant were provided notice of the motion. Whitehead Decl. (ROA 142) ¶ 20. Plaintiff must file with the court a proof of service identifying the specific documents served on all parties and the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u>